

Sophiya Khan @ Safi Ahamad Khan v. State of U.P.

Allahabad High Court · Division Bench · 22 October 2018 · Writ-C No. 34991 of 2018 · Writ-C No. 34991 of 2018 · **Writ dismissed for failure to invoke clause 6.5(b).**

HEADNOTE

A consumer seeking quashing of an electricity recovery certificate cannot obtain writ interference without first invoking clause 6.5(b) of the U.P. Electricity Supply Code, 2005. That clause requires a consumer disputing bill accuracy to pay under protest the claimed sum or six-month average charges, whichever is less, and to file a complaint with the competent authority before the due date. The petition was dismissed on the admitted failure to approach the department.

FACTUAL SUMMARY

The petitioner sought quashing of a recovery certificate dated 9 August 2018 raising a demand of Rs.1,65,779. He claimed to have paid Rs.70,000 on 21 February 2018 against dues shown as Rs.1,75,128, leaving a balance of Rs.1,05,128 plus later consumption. Counsel admitted that the petitioner had not approached the electricity department for correction of the bill under clause 6.5(b) of the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)

disputed-bills

HOLDING

Writ interference with an electricity recovery certificate is refused where the consumer has not invoked clause 6.5(b) by paying under protest (the claimed sum or six-month average, whichever is less) and filing a complaint with the competent authority before the due date. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY OF RS.1,65,779 WAS CORRECTLY COMPUTED AFTER THE PETITIONER'S PAYMENT OF RS.70,000

The Court did not examine the accuracy of the demand or the recovery certificate on merits. ¶ 1